

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

Isaiah Simmons

:

:

Index Number:

Date Purchased:

:

Date Filed:

Plaintiffs

:

SUMMONS

-against-

:

City of New York, New York City Police Department,

:

Police Officer Stephen Oswald, Shield 1696 of the 40

Precinct, Lieutenant Christopher Crane, Shield 1266 of the

:

40 Precinct, Police Officer Matthew Barlow, Shield

268814 of the 40 Precinct, Police Officer Ernst Celestin,

:

Shield 28671 of the 40 Precinct and New York City Police

Officers John Doe,

:

:

Plaintiff's residence is:

3125 Park Avenue

:

Bronx, NY 10451

Defendants

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: August 10, 2024
Bronx, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue, Suite 1H
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Stephen Oswald, Shield 1696 of the 40 Precinct

Lieutenant Christopher Crane, Shield 1266 of the 40 Precinct

Police Officer Matthew Barlow, Shield 268814 of the 40 Precinct

Police Officer Ernst Celestin, Shield 28671 of the 40 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X	:	
Isaiah Simmons,	:	
	:	
Plaintiffs	:	VERIFIED COMPLAINT
	:	
-against-	:	
	:	
City of New York, New York City Police Department,	:	
Police Officer Stephen Oswald, Shield 1696 of the 40	:	
Precinct, Lieutenant Christopher Crane, Shield 1266 of the	:	
40 Precinct, Police Officer Matthew Barlow, Shield	:	
268814 of the 40 Precinct, Police Officer Ernst Celestin,	:	
Shield 28671 of the 40 Precinct and New York City Police	:	
Officers John Doe,	:	
	:	
Defendants	:	
-----X	:	

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Isaiah Simmons, (hereinafter referred to as "ISIAIAH") resides in Bronx, State of New York.
2. That at all times hereinafter mentioned, Police Officer Stephen Oswald, Shield 1696 of the 40 Precinct, (hereinafter referred to as "OSWALD") was employed by the New York City Police Department.

3. That at all times hereinafter mentioned, Police Officer Lieutenant Christopher Crane, Shield 1266 of the 40 Precinct, (hereinafter referred to as “CRANE”) was employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Police Officer Matthew Barlow, Sheild 268814 of the 40 Precinct, (hereinafter referred to as “BARLOW”) was employed by the New York City Police Department.
5. That at all times hereinafter mentioned, Police Officer Ernst Celestin, Shield 28671 of the 40 Precinct , (hereinafter referred to as “CELESTIN”) was employed by the New York City Police Department.
6. That at all times hereinafter mentioned, the New York City Police Officers John Doe, involved in the arrest of Plaintiff (hereinafter referred to as “DOES”) were employed by the New York City Police Department.
7. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
8. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
9. On or about May 17, 2023 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
10. On or about November 8, 2023, a hearing required by Municipal Law 50-H was held. At said hearing Plaintiff testified and set forth the facts underlying Plaintiff’s claim against the City

of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim.

11. That on or about May 12, 2023 at approximately 8:00 PM in the vicinity of 158 Street and Park Avenue, Bronx, NY Plaintiff was standing with other people when he was stopped, handcuffed and arrested by OSWALD, CRAIN, BARLOW, CELESTIN and DOES.

12. That at no time had Plaintiff engaged in any criminal or unlawful activity.

13. That OSWALD, CRAIN, BARLOW, CELESTIN and DOES did not have the lawful authority to demand identification from Plaintiff.

14. That OSWALD, CRAIN, BARLOW, CELESTIN and DOES did not have the lawful authority to arrest Plaintiff.

15. That at no time did Plaintiff obstruct governmental administration.

16. That at not time did Plaintiff harass OSWALD, CRAIN, BARLOW, CELESTIN and DOES.

17. That at no time did Plaintiff resist arrest.

18. That at no time did Plaintiff possess a controlled substance.

19. That despite the above, Plaintiff was arrested he was transported to the 40 precinct.

20. That after Plaintiff arrived at the 40 precinct he was placed into a cell with other male prisoners.

21. That after Plaintiff arrived at the 40 precinct he was strip searched and nothing illegal or unlawful was recovered.

22. That after being held for several hours at the 40 precinct, Plaintiff was transported to Bronx Central Booking located at 215 East 161 Street.

23. That after Plaintiff arrived at Bronx Central Booking he was placed into a cell with other male prisoners.

24. That on or about May 14, 2023 Plaintiff was arraigned on docket CR-010300-23BX wherein he was charged with Obstructing Governmental Administration in the Second Degree, Harassment in the Second Degree, Resisting Arrest and Criminal Possession of a Controlled Substance in the Seventh Degree.

25. That at the time of his arraignment, Plaintiff was released on his recognizance and ordered to return to court.

26. That on and between May 14, 2023 and August 17, 2023 Plaintiff made numerous court appearances until the case was dismissed upon application of the Office of the Bronx County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

27. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 26, as if more fully stated herein at length.

28. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

29. That as a result of the actions of Defendants, Plaintiff was seriously injured due to the intentional manner in which Defendants, their agents, servants, employees and/or licensees treated Plaintiff and he was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

30. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

31. That as a result of the actions by Defendants Plaintiff was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

32. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

33. That as a result of the Defendants' actions, Plaintiff was forced to miss multiple days from work.

34. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

35. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

36. The intentional verbal abuse, false arrest, false imprisonment and maliciously prosecuted by Defendants violated the rights of Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

37. Defendants having no lawful authority to arrest Plaintiff did, nevertheless, unlawfully arrest Plaintiff with actual malice toward her and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

38. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 37, as if more fully stated herein at length.

39. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

40. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

42. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

43. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by claiming that Plaintiff obstructed their governmental administration, harassed them, resisted arrest and possessed controlled substances when they knew Plaintiff did not.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

44. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 43, as if more fully stated herein at length.

45. At all times pertinent hereto, OSWALD, CRAIN, BARLOW, CELESTIN and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

46. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that OSWALD, CRAIN, BARLOW, CELESTIN and DOES committed within the scope of their employment.

AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST DEFENDANTS

47. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 46, as if more fully stated herein at length.

48. The City of New York and New York City Police Department's failure to provide adequate training and supervision to OSWALD, CRAIN, BARLOW, CELESTIN and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the

rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

49. That the City of New York and New York City Police Department knew that OSWALD was the subject of twenty-two (22) prior Civilian Complaint Review Board, civil rights complaints, ten (10) of which were substantiated, and yet they continued to employ him.

50. That the City of New York and New York City Police Department knew that OSWALD was the subject of seven (7) civil rights lawsuits wherein in each one, it is alleged that OSWALD violated the civil rights of another person.

51. That the City of New York and New York City Police Department knew that CRAIN was the subject of sixty (60) prior Civilian Complaint Review Board civil rights complaints, thirteen (13) of which were substantiated and yet they continued to employ him.

52. That the City of New York and New York City Police Department knew that CRAIN was the subject of a disciplinary case wherein he unlawfully strip searched another person and yet they continued to employ him.

53. That the City of New York and New York City Police Department knew that CRAIN was the subject of nine (9) civil rights lawsuits wherein in each one, it is alleged that CRAIN violated the civil rights of another person and yet they continued to employ him.

54. That the City of New York and New York City Police Department knew that BARLOW was the subject of four (4) prior Civilian Complaint Review Board civil rights complaints, one of which was substantiated, and yet they continued to employ him.

55. That the City of New York and New York City Police Department knew that BARLOW was the subject of a disciplinary case wherein he unlawfully entered a premise he was not permitted to and yet they continued to employ him.

56. That the City of New York and New York City Police Department knew that BARLOW was the subject of four (4) civil rights lawsuits wherein in each one, it is alleged that BARLOW violated the civil rights of another person and yet they continued to employ him.

57. That the City of New York and New York City Police Department knew that CELESTIN was the subject of twenty-one (21) prior Civilian Complaint Review Board civil rights complaints, nine (9) of which were substantiated, and yet they continued to employ him.

58. That the City of New York and New York City Police Department knew that CELESTIN was the subject of three (3) disciplinary case wherein in one case he stopped, frisked and searched another person, in another he failed to activate his body-worn camera d in another he wrongfully entered the premise of another that he did not have authority to and yet they continued to employ him.

59. That the City of New York and New York City Police Department knew that CELSTIN was the subject of a civil rights lawsuit wherein it is alleged that CELESTIN violated the civil rights of another person and yet they continued to employ him.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

60. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 59, as if more fully stated herein at length.

61. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

62. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory

that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

Jason Steinberger
Jason A. Steinberger, Esq.
Attorney for Plaintiff
505 Eighth Avenue, Suite 1H
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: August 10, 2024

Jason Steinberger
Jason A. Steinberger